ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO. 84th Commission Meeting

DATE: 22 June 2022

TIME: 2:00 PM

VENUE: Third Floor Meeting Room

#	AGENDA & DISCUSSIONS	DECISIONS
1.	**Apprise on the comments received on draft MoU from Independent Commission Against Corruption, Republic of Mauritius- PPD** *PPD presented the comments received from ICAC, Republic of Mauritius on the draft MOU shared (attached as Annexure I).* *While the draft MoU was sent in the prescribed format notified by Cabinet, however there were some changes made to the format. Nonetheless, the overall content has remained the same except for two points under Areas of Cooperation and Collaboration which were deleted. The proposed points were:* • *Exchanging and sharing (voluntarily or upon request) information of relevance for preliminary fact enquiry, detection, substantiation and prevention of corruption.* • *Facilitating to locate and identify person (s) of interest and/or coordinating non-coercive fact-finding activities in the jurisdiction of requested Party.* *Towards this, the Commission noted that the mandate to share information for investigation and locating people may be prejudicial to their legal system. Therefore, not much concern on their proposed deletion.*	**Send to OAG and MoFA for legal vetting and political clearance respectively.**
2.	**Apprise on salary fixation for cleaner and shifting of CCTV control unit- Team Leader, P/ling Field Office** *As per the proposal approved during the 83rd Commission meeting, the Team Leader apprised that the salary for two cleaners is proposed at Nu.9000 per month for each and when*	**Approved the salary but directed to not make the agreement permanent since there is talk with RCSC to recruit cleaners/sweeper from the staff they are planning to layoff due to excess. For now, discussed with RCSC to have 2 for P/ling and 1 for**

	*comparing it with the minimum daily wage rate, it comes to Nu.7020/- (234*30) which the cleaners raised concern that it is too less.* *The Team Leader resubmitted the proposal to shift the CCTV control unit from the security room to the servicer room for safe custody.*	**T/gang.** **Approved**
3.	**Present the Mandatory Indicators- PD & EAD DoPE & PPD** *As per the discussion during the virtual meeting with Director of Cabinet, the team (PD, EAD & PPD) worked on formulating vulnerable based indicators for highly vulnerable agencies as well general indicator for rest. Towards this, the concept note was approved during the 74th Commission Meeting. When the team tried to formulate the indicators due to lack of knowledge of the particular service of the vulnerable agencies (13 agencies), the team apprised that the indicators may not be comprehensive. However, the agency specific indicators were formulated based on the available reports and data (NIA, RAA Audit, Complaints received against agencies, etc).* *The team presented both the general and agency specific indicators (attached as Annexure II).*	**Under General Indicators, for Activity 2, the Commission raised concern what if there are no complaints against an agency. As per assessment parameter, they will by default get full score. Is there any way to check??** **Increase the weight to have system to receive administrative complaints to 10 and enforced administrative sanctions vis-à-vis number of complaints received to 5.** **Activity 3, under description revise to "Agency will decide as per the decision of the IVR".** **Activity 4: Since there is no Act, it may be a challenge. Thus, directed the team to explore on revising it after the presentation by the RCSC on Tuesday.** **Activity 5: Revise the criteria- Percentage of disproportionate asset to measure accurateness of the declaration and reward agencies with less errors.** **Revise criteria 3 & 4 to Instituted practice of declaring and management of CoI and Instituted practice of declaring and management of Gift respectively.** **Under Specific Indicators, directed to make revisions as follows:** • **Effective and transparent communication platforms** • **Engage Internal Auditors to conduct corruption risk assessment.**

		Put dissemination of budget- under general indicator since its general requirement **Overall, the approved the indicators and based on the presentation to be made by the RCSC on Tuesday, the MIs to be sent to Cabinet for approval. However, the Commission also noted that for some agencies, based on the lessons learnt from cases and trend of vulnerability, it is necessary to dictate indicators. Moreso, the need to segregate the vulnerability of the Ministry Secretariate and Departments/Division under it is necessary.**
4.	**Proposal for extension of Deadline for filing Annual AD – ADMD, DoPE & ICTS, SS** *The Division proposed to extend the dateline since there were issues after migration of data and application to new IP (Details as attached in Annexure III). Based on the issues observed, the team feels that the issue started after 20th May when GDC migrated ADS from staging to production server and later migrating the Database and application to new IP. The team tried to resolve the issue by having additional server to set up load balancer, nonetheless the issue could not be resolved. Thus, decided to host the ADS at ACC Server to find out the issue with the system. Until then, the Division proposed to extend the declaration till 31 July 2022.*	**Directed to host the ADS at ACC Server to identity the issue. The dateline extension to be decided upon finding the issue. However, the Division to note the chronology of issues in the extension notification.**
5.	Present SRS on Mobile APP- DoPS	**Deferred to next Commission Meeting**
6.	**Update on connection of Camp Trashigang with Dzongkhag fiber optic- Team Leader, Camp T/gang** *The Team Leader upon direction of the 83rd Commission meeting talked with the Bhutan Telecom (BT) Manager and he was informed that the current BT building where the ACC office resides is also connected with fiber optic. However, since BT is the suppler of fiber optic for the Dzongkhag, they charge Nu.550 per mpv*	**Approved as it will entails budget saving. However, remined all that hereafter, any proposals especially involving financial implication should be in written form.**

	compared to Nu. 1250 per mpv to other clients. Therefore, looking at the price difference and also Dzongkhag will bear the expenses if connected with their fiber optic from their annual budget, the Team Leader proposed to disconnect wifi from BT and connect with Dzongkhag. In case in further if we want to revert back to BT wifi, the Manager informed the Team Leader that it can be done easily upon putting up an application.	
7.	**Discuss on distribution of Macbooks-Commission** *From the saving of funds from the Justice Sector Programe, as recommended from the Departments/Divisions/Services, the Commission approved the procurement of Macbook (30 numbers). Thus, in order to ensure that all Departments/Divisions/Services have at least one each as well as based on the relevancy of the job, the Commission approved the distribution as attached in Annexure IV.*	**Approved the list as attached (Annexure III). The Commission noted that since due to budget constraints, only few numbers were procured. However, the opportunity to buy more in future will be explored.**
8.	Others:	

Commissioner **Commissioner** **Chairperson**

Draft Mandatory Indicators
FY: 2022-2023

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Format

General

- ✓ All Agencies
- ✓ Cross cutting activities

Specific

- ✓ Vulnerable Agencies
- ✓ Specific activities

Parameters

1. System	Corruption Control Index
	Work Integrity Index
2. Culture	Organizational culture index
	Ethical leadership index
	Transparency Index
3. Accountability	Accountability Index
	Accountability Component (EL)
4. ACC Complaints	No. of Complaints
	Decision on Complaints
5. Audit Findings	Types of observation
	Amount of observation
6. OIP Scores	
7. Budget Allocation	

General Activities

1. Develop and enforce service specific Code of Conduct;
2. Enforce administrative sanctions vis-à-vis the complaints received;
3. Conduct Integrity Vetting for all recruitment and promotion processes
4. Develop guidelines to encourage and protect whistleblowers within organization;
5. Strengthen declaration and management of Asset, COI and Gift; and
6. Institute system to use the score of MI/OIP as one of the criteria to grade leader's performance

Activity 1: Develop and enforce service specific Code of Conduct

Description:

Develop and enforce ethical code of conduct for all services. Agencies should develop/adapt service specific code of conduct to guide employees while delivering the public services. Then, enforce CoC to ensure that employees adhered to it all the time.

Weightage: 20 points

Criteria:

1. **Developed code of conduct – 10 points** (Yes: 10; No: 0)
2. **Sensitized CoC to staff – 10 points** (Yes: 10; No: 0)

MoV:

- Copy of CoC
- Office order/Notice/circular/MoM/Reminders

Activity 2: Enforce administrative sanctions vis-à-vis the complaints received

Description:

Take appropriate administrative action/s on the complaints that are administrative in nature. Agencies must establish proper system to receive administrative complaints and take appropriate action/s. Also, include mechanism to refer those complaints that do not fall under the purview of agency concerned to relevant authority.

Weightage: 20 points

Criteria:

1. **Established a system to receive administrative complaints- 5 points (Yes: 5; No: 0)**
2. **Enforced administrative sanctions vis-à-vis number of complaints received – 10 points**
3. **Maintenance of proper records vis-à-vis administrative action taken–5 points**

MoV:

- Complaint systems such as GRM/Feedback system/Online system
- Sanction orders
- Action taken records (files/soft copy)

Activity 3: Conduct Integrity Vetting for all recruitment and promotion processes

Description:

Implement Integrity Vetting System developed by the ACC to verify the track record of individuals participating in the recruitment and promotion. This system aims to promote candidates with immaculate track record. The agencies will share the list of candidates participating in the recruitment and promotion process to the ACC and based on the report provided, the agency will decide whether to allow the individual concerned to partake in the process.

Weightage: 20 points

Criteria:

1. **Integrity Vetting Report generated vis-à-vis candidates shortlisted for selection in the recruitment – 10 points**
2. **Integrity Vetting Report generated vis-à-vis candidates shortlisted for promotion – 10 points**

MoV:

- Records of recruitment and promotion in a year
- Vetting records for all recruitments and promotions conducted

Activity 4: Develop guidelines to encourage and protect whistleblowers within organization

Description:

Develop and adopt guidelines to encourage and protect whistleblowers for reporting corruption and wrongdoings in the organization.

Weightage: 15 points

Criteria:

1. Develop guidelines to protect whistleblowers - 10 points (Developed and adopted=10; Draft=5; Not developed=0)
2. Whistleblowers are encouraged - 5 points (Yes = 5; No=0)

MoV:

- Guideline/SOP/Executive order/MoM

Activity 5: Strengthen declaration and management of Asset, COI and Gift

Description:

Implement asset declaration for all covered persons as per the AD Rules 2017 and submit reports. Also, appoint dedicated focal person to ensure smooth implementation.
Implement COI declaration in all decision-making processes such as HRC/Tender Evaluation Committee/Board meeting etc. and manage the COI with proper recordings.
Implement the provisions of the Gift Rules 2017.

Weightage: 20 points

Criteria:

1. AD compliance rate – 5 points
2. Percentage of disproportionate asset – 5 points
3. Instituted practice of declaring CoI in all decision-making processes/meetings – 5 points
4. Instituted practice of gift declaration = 5

MoV:

- AD report/ AD notification
- List of DA and verification report
- CoI declaration and Management records
- Gift declaration and management records

Activity 6: Institute system to use the score of MI/OIP as one of the criteria to grade leader's performance

Description:

Include MI on integrity and anti-corruption as one of the indicators in the agency's APA/APC and use the score as one of the criteria to grade leader's performance

Weightage: 5 points

Criteria:

1. MI on integrity and anti-corruption integrated in APA/APC - 5 points (Yes=5; No=0)

MoV:

- APA/APC copy
- Leadership target

SN	Activity	Weightage
1	Develop and enforce service specific Code of Conduct;	20
2	Enforce administrative sanctions vis-à-vis the complaints received;	20
3	Conduct Integrity Vetting for all recruitment and promotion processes	20
4	Develop guidelines to encourage and protect whistleblowers within organization;	15
5	Strengthen declaration and management of Asset, COI and Gift; and	20
6	Institute system to use the score of MI/OIP as one of the criteria to grade leader's performance	5
Total		100

Specific Activities

Vulnerable Agencies	
Ministries	MoAF
	MoH
	MoHCA
	MoIC
	MoLHR
	MoWHS
Dzongkhag	Mongar
	Trashigang
Thromde	Gelephu Thromde
	Thimphu Thromde
Autonomous Agency	JDWNRH
	NECS
	TCB

Specific Activities

- Institute effective communication platforms to share information and decisions;
- Engage Internal Auditors to conduct risk assessment in the vulnerable services/sectors and implement recommendations;
- Develop e-services with clear service delivery standards (TAT) for all services that are offered manually currently;
- Disseminate the budget information to ensure budget transparency;
- Institute system to use the service users feedback to grade employee's performance
- Strengthen supervisory accountability against the audit memos issued

THANK YOU

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Proposal for Deadline Extension for filing Annual Asset Declaration

ADMD
22/6/2022

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Outline

- Compliance Statistics
- Common Issues Observed
- Rational for Deadline Extension
- Proposal for deadline extension

Overall Compliance rate

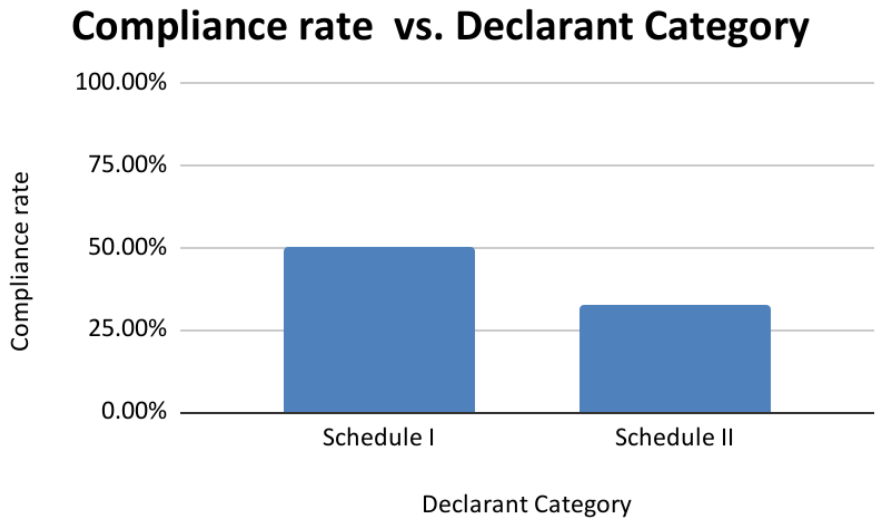
Declarant Category	Total Covered Persons	Filed on Time	Compliance rate
Schedule II	26,344	13,258	50.33%
Schedule I	714	235	32.91%
Overall	27,058	13,493	**49.87%**

(Statistics as of 20 June 2022)

Overall Compliance rate:

54.38%

(As of 5:30 PM, 22/6/2022)



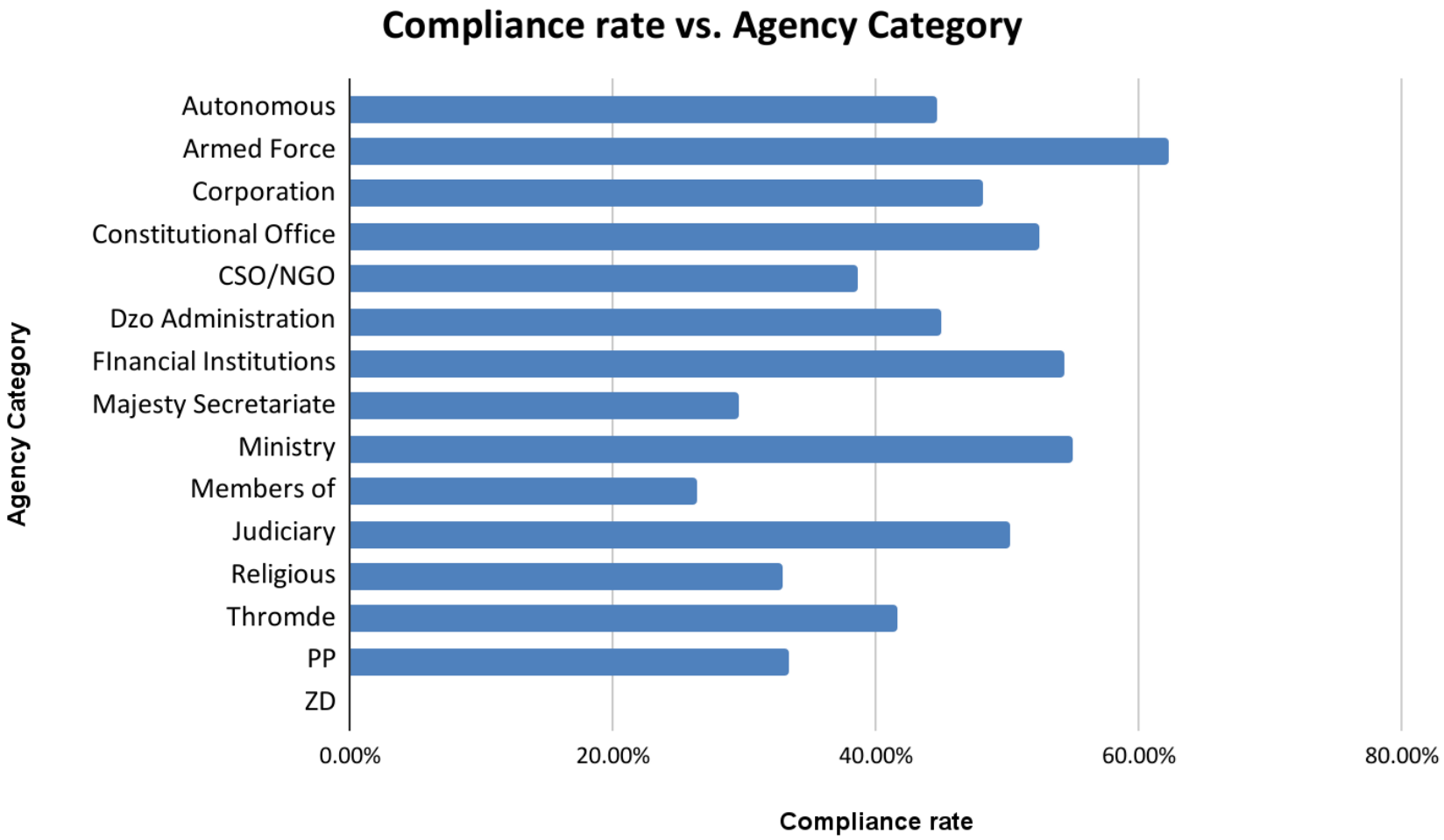
Compliance Rate (Agency Category)

Agency Category	Total Covered Person	Total Filed on Time	Compliance Rate
Autonomous	2812	1254	45%
Armed Force	1497	932	62.26%
Corporation	4931	2370	48.06%
Constitutional Office	526	276	52.47%
CSO/NGO	334	129	38.62%
Dzo Administration	5395	2421	44.87%
FInancial Institutions	3228	1755	54.37%
Majesty Secretariat	372	110	29.57%

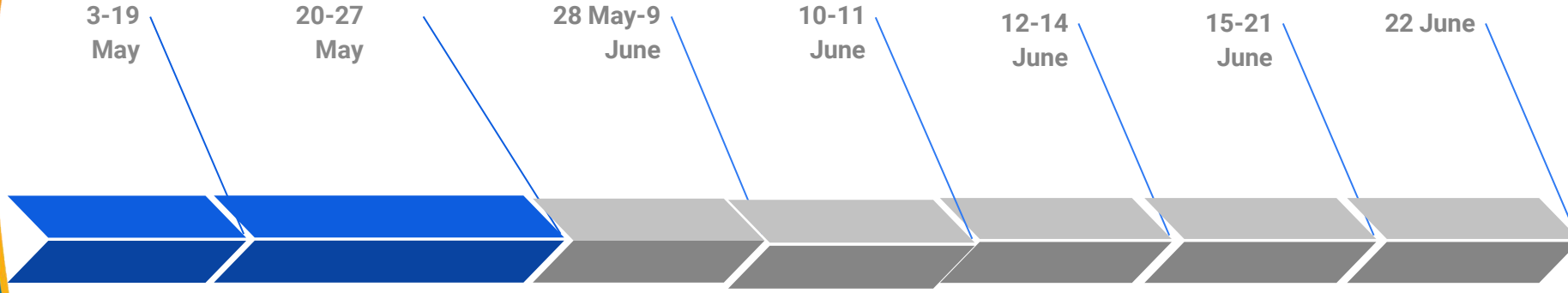
Contd.

Ministry	6866	3775	54.98%
Members of Parliament	72	19	26.39%
Judiciary	424	213	50.24%
Religious Organizations	134	44	32.84%
Thromde	463	193	41.68%
PP	3	1	33%
ZD	1	0	0%
Total	**27058**	**13492**	**49.87%**

(Statistics as of 20 June 2022)


Compliance rate vs. Agency Category
Agency Category
Autonomous
Armed Force
Corporation
Constitutional Office
CSO/NGO
Dzo Administration
FInancial Institutions
Majesty Secretariate
Ministry
Members of
Judiciary
Religious
Thromde
PP
ZD
0.00%
20.00%
40.00%
60.00%
80.00%
Compliance rate

Chronology of Issues Observed after ADS launch



Smooth Functioning of AD System
-Less than 1000 declarants

-GDC migrated ADS from staging to production server.
-GDC later migrated Database and application to new IP and gave us access with new credentials
-Then the issue came not being able to access the system
-Curl Issue: API configuration non-functional

Slow system response
-less than 8000 declarants

ACC requested for three additional server to set up load balancer-Configured load balancer to manage application traffic

-System was down for 72 hours to let the configuration of load balancer take effect

-Constant 502 and 504 Bad gateway issue

-To host ADS at ACC Server to find out the issue with the system

Common Concerns/Issues shared by Declarants

- Data Migration- Past Declaration creating confusion among declarants
- Constant System Issues: 502/504 Bad gateway & 500 Server Error
- Slow system response

Proposal for Deadline Extension

Rational for extension:

1. Low Compliance Rate
2. System Issues

Proposal for extension of Deadline

- Annual Declaration: Till 31 July
- Late Declaration: 1-31 August
- Non-Declaration: 1 September onwards

Way forward

- Host ADS at ACC to find out the underlying Server issues if any
- Scheduled a meeting with GDC and all other relevant stakeholders to discuss further

Commission Decision

- Revised AD filing deadline

Comments received from ICAC, Republic of Mauritius on the draft MoU

PPS

22 June, 2022

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Title of the MoU

Memorandum of Understanding

Between

Anti-Corruption Commission of Bhutan

And

Independent Commission Against Corruption of Mauritius

On

Strengthening and Promoting Cooperation to Prevent and Combat Corruption

MEMORANDUM OF UNDERSTANDING

BETWEEN

the

ANTI-CORRUPTION COMMISSION OF BHUTAN

KINGDOM OF BHUTAN

and the

INDEPENDENT COMMISSION AGAINST CORRUPTION

REPUBLIC OF MAURITIUS

Preamble (ACC)

The Anti-Corruption Commission of Bhutan hereinafter referred to as 'ACC' and the Independent Commission Against Corruption of Mauritius hereinafter referred to as 'ICAC', and jointly referred to as 'the Parties';

UNDERSTANDING about the seriousness of threats posed by corruption to the security and stability of societies, fundamental values and principles of democracy, and sustainable socio-economic development and prosperity;

RECOGNIZING that preventing and fighting corruption, which often is transnational in nature, can be considerably bolstered by international cooperation through sharing of knowledge and expertise;

DESIRING to establish and strengthen collaborative efforts between the Parties in preventing and combating corruption;

CONSIDERING that the MoU is entered into with the intention to contribute in enhancing international cooperation as specifically espoused by Article 48 of United Nations Convention against Corruption (UNCAC);

Preamble (ACC)

PROMOTING the respect for the rule of law and human rights in all anti-corruption activities;

ACKNOWLEDGING that ICAC has the mandate as set out in Section 20 of the Prevention of Corruption Act 2002 of Mauritius to, *inter alia,* cooperate and collaborate with international institutions, agencies or organizations in the fight against money laundering and corruption; and

ACKNOWLEDGING that the ACC has the constitutional mandate under the Anti-Corruption Act of Bhutan 2011 to take all necessary steps to prevent and combat corruption;

Have reached the following understanding:

Preamble (ICAC Mauritius)

This Memorandum of Understanding (hereinafter referred to as **"MoU"**) is made between:

The Anti-Corruption Commission of Bhutan (hereinafter referred to as the **"ACC"**), established in accordance with the provision of the Constitution of the Kingdom of Bhutan; and

The Independent Commission Against Corruption of the Republic of Mauritius (hereinafter referred to as **"ICAC"**), established under the Prevention of Corruption Act of 2002.

The ACC and the ICAC are hereinafter individually referred to as "the Party" or jointly referred to as "the Parties"

Preamble (ICAC Mauritius)

WHEREAS

1. The principal functions of the ACC are to:

a) prevent corruption involving or affecting authorities and officials, whether public or private;

b) educate authorities and officials, whether public or private, and members of the public about corruption and its evil effects on administration;

c) investigate corruption involving or affecting authorities and officials, whether public or private;

d) examine the practices, procedures and systems of public or private sector entities to facilitate the discovery of offences and to secure the revision of such practices, procedures or systems; and

e) undertake studies and research to identify the trends, causes, types, pervasiveness and seriousness or impacts of corruption.

2. The ACC introduced the system of asset declaration for public officials in 2006 as part of the overall anti-corruption strategy. The main objectives are to detect and prevent illicit enrichment, promote public trust through accountability and facilitate the management of Conflicts of Interest.

Preamble (ICAC Mauritius)

3. The ICAC is mandated under the Prevention of Corruption Act of 2002 to *inter alia*:

a) lead the national fight against corruption and money laundering through the Investigation and Prosecution of corruption and money laundering offences;

b) educate members of the public against corruption;

c) examine the practices and procedures of any public body in order to facilitate the discovery of acts of corruption and to secure the revision of methods of work or procedures which, in its opinion, may be conducive to corruption; and

d) advise and assist any public body on ways and means in which acts of corruption may be eliminated.

4. With the enactment of the Declaration of Assets Act 2018, the ICAC has been endowed with additional powers, functions and responsibilities to receive, disclose, enforce penalties, verify and monitor declaration of assets.

Purpose

PURPOSE/OBJECTIVE

1. The Parties shall strive to strengthen, promote and enhance cooperation between the two countries in preventing and combating corruption on the basis of equality and mutual benefits, adhering to the terms of this MoU and the laws, regulations and national policies from time to time in force in their countries.

A. Purpose of the Memorandum of Understanding

5. Both the Republic of Mauritius and the Kingdom of Bhutan are Parties to the United Nations Convention Against Corruption (UNCAC). Article 48 of UNCAC provides for States Parties to co-operate closely to enhance the effectiveness of law enforcement action to combat offences covered by the Convention. Article 49 of the UNCAC further provides for the possibility of joint investigative bodies being established by competent authorities of States Parties.

6. On this basis, the Parties, guided by their respective mandates, are willing to enter into this MoU to strengthen and promote international cooperation in the fight against corruption and money laundering through the efficient and effective sharing and exchange of information, knowledge and experience including the set-up of the declaration of assets system.

Basis of MoU (New insertion by ICAC)

B. Basis of this MoU

7. This MoU, based on mutual respect and in the spirit of goodwill, defines the principles of cooperation between the Parties and establishes the manner in which the Parties will exchange and share knowledge, expertise, intelligence and information on techniques in the fight against corruption, money laundering and in the declaration of assets system.

8. The Parties deem this MoU to be an appropriate instrument to govern the exchange of information, without prejudice to their independence and respective institutional and legal obligations.

9. This MoU is not intended to create any obligation contrary to, or to modify any obligation arising from the legal and policy framework or mandate of either Party. In the event of any inconsistency between the MoU and the legal and policy framework of either Party, the latter shall prevail.

Areas of Cooperation & Collaboration (ACC)

2. The areas of cooperation under this MoU may include the following:

a) Exchanging and sharing (voluntarily or upon request) information of relevance for preliminary fact enquiry, detection, substantiation and prevention of corruption;

b) Facilitating to locate and identify person (s) of interest and/or coordinating non-coercive fact finding activities in the jurisdiction of requested Party;

c) Exchange of technical assistance and/or expertise on policies, systems and processes related to asset declaration and management;

d) Through meetings, conferences, seminars, workshops, study tours and attachments:

- Sharing effective tools, techniques and best practices towards enhancing investigative capacity of Investigation Officers (law enforcement officers) in carrying out information gathering and intelligence operations in detecting corruption offences; and
- Exchanging and sharing of experiences, best practices and professional materials with respect to prevention and education programmes.

Areas of Cooperation & Collaboration (ACC)

e) Initiating joint projects/programmes to prevent and combat corruption through civic engagement, community education, training and research.

f) Performing other activities as deemed necessary.

Areas of Cooperation & Collaboration (ICAC)

C. Areas of Cooperation and Collaboration

10. Notwithstanding their respective legal, administrative systems and availability of means and resources, the Parties undertake to cooperate and consult with each other in providing the following forms of assistance, *inter alia*:

a) To share with each other, either voluntarily or upon request by the other party, relevant information on anti-corruption, anti-money laundering strategies and the declaration of assets system;

b) To exchange ideas, knowledge, skills, technological abilities and experience in the application of international standards in the fight against corruption and money laundering and asset declaration;

c) To assist each other and share knowledge, skills, experience, best practices and professional materials on prevention and education programmes in the fight against corruption and money laundering, and asset declaration system;

d) To provide technical assistance in corruption and money laundering investigation, prosecution, prevention and education and asset declaration system;

Areas of Cooperation & Collaboration (ICAC)

e) To share knowledge on effective investigative tools, techniques and best practices to carry out information gathering and intelligence operations for the purpose of detecting money laundering and corruption-related offences or illicit enrichment;

f) To organize study visits and employee attachments;

g) To enhance capacity through the holding of joint trainings, projects, workshops, seminars and conferences; and

h) To jointly engage in technical expertise and knowledge sharing on resource mobilisation.

Costs

3. This MoU shall not give rise to any financial obligation by one Party to the other. Each Party shall bear its own cost and expenses in relation to this MoU. However, the Parties may agree on specific financial and technical arrangements with regard to the individual areas of collaboration.

D. Costs

11. This MoU shall not give rise to any financial obligation by one Party to the other. Each Party shall bear its own cost and expenses in relation to this MoU.

12. The Parties will agree on specific financial and technical arrangements prior to carrying out any activity, programme or project in fulfillment of this MoU. Such arrangement shall be in accordance with the legal and policy framework of both Parties.

Confidentiality

CONFIDENTIALITY

6. The Parties shall observe confidentiality and secrecy of the information or documents and other data received and supplied to other Party under the obligation of this MoU. The Parties shall neither transfer nor relay such information to a Third Party without prior consent from the other

4. Protection of intellectual property rights shall be maintained in consonance with the respective national laws, rules and regulations of the Parties and with other international agreements signed by the Parties.

The use of name, logo and/or official emblem of any Party on any publication, document and/or paper shall be allowed only with the written approval of the other Party.

Notwithstanding anything contained in the above paragraphs, th intellectual property rights in respect of any technological development, products and services which is a result of joint effort of the Parties or research results obtained through joint activity effort of the Parties, shall be jointly owned by the Parties in accordance with the terms to be mutually decided upon.

E. Confidentiality and Permitted Use of Information

13. Both Parties shall keep strictly confidential and shall not disclose, or cause or permit to be disclosed, to any person or entity, any information, documents and other data exchanged between them without the prior written consent and approval of the Party who provided the information, documents or data.

14. Any privileged information or document obtained under this MoU will be used by the Parties:

a) At institutional level- for operational intelligence in conducting enquiries into corruption, money-laundering or related offences, enhancement of staff and operational capacities; and
b) At national level, the information will be used to contribute to improvements in the national policy and legal reforms pertaining to anti-corruption, anti-money laundering and assets declaration.

Any information or document obtained under this MoU will not be used for any purpose other than as described in the request without prior written consent and or approval of the disclosing Party.

15. Protection of intellectual property rights shall be maintained in consonance with the respective national laws, rules and regulations of the Parties and with other International agreements signed by the Parties.

16. The use of name, logo and/or official emblem of either Party on any publication, document and/or paper shall be allowed, subject to the written consent and approval of the Party concerned.

17. Notwithstanding anything contained in the above paragraphs, the intellectual property rights in respect of any technological development, products and services which is a result of joint effort of the Parties or research results obtained through joint activity effort of the Parties, shall be jointly owned by the Parties in accordance with the terms to be mutually decided upon.

5. Meet periodically to review the progress of activities carried out under this MoU and identify prospective areas of cooperation and priority areas in the future.

F. Focal Points

18. Each Party shall nominate one or more focal person(s) and/or a member of senior management for implementation of this MoU. Focal points shall report internally (to the respective head of Institutions) within their respective Institutions on outcomes of discussions and recommendations made.

Validity

This MoU will be valid for a period of three (3) years and may be renewed on mutual consent of the Parties.

G. Validity

19. This MoU shall come into force once it has been duly signed by the authorized representatives of both Parties for an indefinite period, unless either Party may wish to discontinue this MoU. This MoU may be reviewed as agreed upon mutual consent.

Termination

8. This MoU may be terminated by either party, at any time, by giving at least three (3) months written notice to the other Party. Such notice shall be given by the Head of the Party concerned. Termination will not affect the validity of any ongoing contracts or agreements made under this MoU.

H. Termination

20. This MoU may be terminated by either party, at any time, by giving at least one (1) month written notice to the other Party. Such notice shall be given by the Head of the Party concerned. Termination will not affect the validity of any ongoing contracts or arrangements made under this MoU.

Amendment

9. This MoU may be amended with the mutual written consent of both the Parties.

I. Amendment

21. Upon the request of either Party, consultation may be held immediately in order to address the need for any amendment of this MoU. Any such amendment will come into effect on the date of the signing by the representatives of the Parties of an official document representing such amendment.

22. Any amendment of this MoU shall have no effect and shall not be binding on the Parties unless it is in writing and signed by persons authorized to do so on behalf of each Party.

Third Party Beneficiary Rights (New insertion)

J. Third Party Beneficiary Rights

23. The Parties do not intend to create in any other individual or entity the status of a third-party beneficiary, and this MoU shall not be construed so as to create such status. The rights, duties and obligations contained in this MoU shall operate only between the parties to this MoU, and shall solely be to the benefit of the parties to this MoU.

Dispute settlement

10. Any dispute regarding the interpretation or application of this MoU will be resolved through mutual consultations between the Parties based on the principles of mutual understanding and respect.

K. Dispute Settlement

24. Any dispute regarding the interpretation or application of this MoU will be resolved through mutual consultations between the Parties based on the principles of mutual understanding and respect.

General Provision (New Insertion by ICAC)

L. General Provisions

25. The parties to this Memorandum of Understanding shall mutually and in good faith uphold and defend this MoU.

Commencement

COMMENCEMENT

11. This MoU shall come into effect on ..... (date of signing)

The foregoing represents the understanding reached between the parties on the matter referred to in this MoU and does not create any legally binding obligations upon the Parties.

For Independent Commission Against Corruption, Mauritius	For the Anti-Corruption Commission, Bhutan
(Navin Beekarry)	(Deki Pema)
DIRECTOR GENERAL	**CHAIRPERSON**
Signed at ..... [*place*]	Signed at ..... [*place*]
on ..... [*date*]	on ..... [*date*]

M. Commencement

26. This MoU shall come into effect on ..... (date of signing)

27. The foregoing represents the understanding reached between the parties on the matter referred to in this MoU and does not create any legally binding obligations upon the Parties.

For Independent Commission Against Corruption, Republic of Mauritius	For the Anti-Corruption Commission, Kingdom of Bhutan
(Navin Beekarry)	(Aum Deki Pema)
DIRECTOR GENERAL	**CHAIRPERSON**
Signed at ..... [*place*]	Signed at ..... [*place*]
on ..... [*date*]	on ..... [*date*]

Thank you la.

ANTI-CORRUPTION COMMISSION

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Distribution List of Macbooks

#	Item	Specification	Quantity	Distribution	Currently Receievd	Distribution as of receievd number
1	**MacBook Pro 14"**	Apple M1 Max with 10-core CPU, 24-core GPU, 16-core Neural Engine 32GB unified memory	1	1 to Graphic Designer	0	
2	**MacBook Pro 14"**	Apple M1 Pro with 8-core CPU, 14-core GPU, 16-core Neural Engine 16GB unified memory 512GB SSD storage	7	2 to Commissioners 2 to Directors (DoI & DoPS) 1 to Head of PPD 1 to Chief of EAD, DoPE 1 to ADMD, DoPE	3	2 to Directors (DoI & DoPS) 1 to EAD
3	**MacBook Pro 13"**	Apple M1 chip with 8-core CPU, 8-core GPU, and 16-core Neural Engine 8GB unified memory 512GB SSD storage	22	2 to TSD 2 to LD 2 to SS (1 for Offtg. Head and 1 to ICTS) 1 to Offtg. Director, DoPE 1 to ADMD 1 to Media Unit 1 to Chief CMD, DoPS 3 to Regional Team Leaders 9 to DoI	10	1 to Head TSD 1 to Offtg. Director, DoPE 1 to Offtg. Head, LD 1 to Offtg. Head, SS 1 to ICTS 3 to Regional Team Leaders 1 to Chief, CMD 1 to Media
		Total	**30**		**13**	